EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 59565/13
Mustafa Ajdar oglu AKHUNDOV and Sevinj Akif gizi MAJIDOVA
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 4 February 2021 as a Committee composed of:

Ganna Yudkivska, *President,*
Ivana Jelić,
Arnfinn Bårdsen, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 29 August 2013,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicants, Mr Mustafa Akhundov and Ms Sevinj Majidova, are Azerbaijani nationals who were born in 1976 and 1989 respectively. They were represented by Mr I. Aliyev, a lawyer based in Azerbaijan.

The applicants' complaints under Article 11 of the Convention concerning the authorities' refusal to register their association, under Article 6 concerning their absence at the Supreme Court hearing and under Article 34 concerning the right of individual application without hindrance were communicated to the Azerbaijani Government ("the Government"), who submitted observations on the admissibility and merits.

By letter dated 1 June 2017 the Government's observations were forwarded to the applicants' representative. The applicants were invited to submit their observations in reply to those of the Government. On 24 July 2017 the applicants' representative informed the Court that he had lost contact with the applicants.

By letter dated 24 August 2017, sent to the applicants' representative, the applicants' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does

not intend to pursue the application. No response has been received to this letter.

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 25 February 2021.

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Liv Tigerstedt Acting Deputy Registrar	Ganna Yudkivska President